

HOUSE No. 3758

The Commonwealth of Massachusetts

PRESENTED BY:

Steven Owens

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to class 3 electric bicycles.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/17/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/27/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>6/30/2025</i>
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>7/30/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>9/13/2025</i>

HOUSE No. 3758

By Representative Owens of Watertown, a petition (accompanied by bill, House, No. 3758) of Steven Owens and Bruce E. Tarr relative to class 3 electric bicycles. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to class 3 electric bicycles.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1 of chapter 90 of the General Laws, as appearing in the 2022 Official Edition, is
2 hereby amended by inserting after the definition of “Class 2 electric bicycle” the following
3 definition:-

4 "Class 3 – an electric bicycle equipped with a motor that provides assistance only when
5 the rider is pedaling, and that ceases to provide assistance when the bicycle reaches the speed of
6 28 miles per hour;"

7 Section 1 of chapter 90, as so appearing, is hereby further amended by inserting within
8 the definition of “Department” the following definition:-

9 “Electric bicycle”, a bicycle or tricycle equipped with fully operable pedals and an
10 electric motor of 750 watts or less that meets the requirements of a class 1 electric bicycle, class
11 2 electric bicycle, or class 3 electric bicycle."

Chapter 85 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting in section 11B³/₄ the following:-

A municipality, local authority or state agency with jurisdiction over a natural surface trail designated for bicycle use made by clearing and grading the soil, after public notice and a public hearing may adopt ordinances or regulations prohibiting or otherwise regulating the operation of electric bicycles on such paths, including, but not limited to, the imposition of speed limits."

Chapter 85 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking in section 11B³/₄ the following:-

"(d) An electric bicycle shall not be operated on a trail designated for nonmotorized traffic, that a municipality, local authority or state agency has jurisdiction over, if such trail has a natural surface tread made by clearing and grading the soil and no surfacing materials have been added; provided, however, that a municipality, local authority or state agency after public notice and a public hearing may adopt ordinances or regulations permitting or otherwise regulating the use of electric bicycles on such a trail within its jurisdiction, including, but not limited to, the imposition of speed limits."

Chapter 85 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking in section 11B³/₄ (b) the following:- "that electric bicycles shall not be ridden or operated on sidewalks."